

payment_of_wages_act_1936 - RAG Optimized Version

=== CHUNK 1 START ===

Title: Chapter XXVI of the Code of Criminal Procedure, 1973 (2 of 1974).]

----- 1. Ins. by Act 53 of 1964, s. 15 (w.e.f. 1-2-1965).

Keywords: rupees, punishable, extend, wilfully, fine, hundred, subs, person

Semantic Category: Legal Act

Chapter XXVI of the Code of Criminal Procedure, 1973 (2 of 1974).] -----

2. Ins. by Act 68 of 1957, s. 8 (w.e.f. 1-4-1958).

3. Subs. by Act 53 of 1964, s. 16, for certain words (w.e.f. 1-2- 1965).

4. Subs. by Act 38 of 1982, s. 10 (w.e.f. 15.10.1982).

108D 19.

[Repealed.] 19. [Power to recover from employer in certain cases.]- Rep. by 17 the Payment of Wages (Amendment) Act, 1965 (1-2-1965).

20.

Penalty for offences under the Act.

20. Penalty for offences under the Act.- (1) Whoever being responsible for the payment of wages to an employer

(2) Whoever contravenes the provisions of section 4, 3*[sub- section (4) of section 5, section 6, sub-section

4*[(3) Whoever being required under this Act to maintain any records or registers or to furnish any information

shall, for each such offence, be punishable with fine 2*[which shall not be less than two hundred rupees

(4) Whoever-- (a) wilfully obstructs an Inspector in the discharge of his duties under this Act; or (b) commits

2. Subs. by Act 38 of 1982, s. 11 (w.e.f. 15-10-1982).

3. Subs. by s. 18, *ibid.*, for "section 6" (w.e.f. 1-2-1965).

4. Ins. by s. 18, *ibid.* (w.e.f. 1-2-1965).

108E (d) prevents or attempts to prevent or does anything which he has any reason to believe is likely to

shall be punishable with fine 1*[which shall not be less than two hundred rupees but which may extend to

Provided that for the purpose of this sub-section, no cognizance shall be taken of any conviction made under

(6) If any person fails or wilfully neglects to pay the wages of any employed person by the date fixed by the

Procedure in trial of offences.

=== *CHUNK 1 END* ===

=== CHUNK 2 START ===

Title: Chapter XXVI of the Code of Criminal Procedure, 1973 (2 of 1974).]

----- 1. Ins. by Act 53 of 1964, s. 15 (w.e.f. 1-2-1965).

Keywords: person, court, application, employed, complaint, against, offence, payment

Semantic Category: Legal Act

21. Procedure in trial of offences.- (1) No Court shall take cognizance of a complaint against any person for an offence under sub-section (1) of section 108F the payment of the wages was unable, though exercising reasonable diligence, to make prompt payment of the wages.
(2) Before sanctioning the making of a complaint against any person for an offence under sub-section (1) of section 108F the payment of the wages was unable, though exercising reasonable diligence, to make prompt payment of the wages.
(3) No Court shall take cognizance of a contravention of section 4 or of section 6 or of a contravention of section 108F the payment of the wages was unable, though exercising reasonable diligence, to make prompt payment of the wages.
1*[(3A) No Court shall take cognizance of any offence punishable under sub-section (3) or sub-section (3A) of section 108F the payment of the wages was unable, though exercising reasonable diligence, to make prompt payment of the wages.
22.
Bar of suits.
22. Bar of suits.- No Court shall entertain any suit for the recovery of wages or of any deduction from wages or of any deduction from wages or of any deduction from wages.
22A.
Protection of action taken in good faith.
2*[22A. Protection of action taken in good faith.- No suit, prosecution or other legal proceeding shall be instituted against any person for an offence under sub-section (1) of section 108F the payment of the wages was unable, though exercising reasonable diligence, to make prompt payment of the wages.
Contracting out.
23. Contracting out.- Any contract or agreement, whether made before or after the commencement of this Act, shall not be void on the ground that it contains a provision whereby the liability of any person for an offence under sub-section (1) of section 108F the payment of the wages was unable, though exercising reasonable diligence, to make prompt payment of the wages.
----- 1. Ins. by Act 53 of 1964, s. 19 (w.e.f. 1-2-1965).
2. Ins. by s. 20, ibid. (w.e.f. 1-2-1965).
108G 24.
Application of Act to railways, air transport services, mines and oilfields.
1*[24. Application of Act to railways, air transport services, mines and oilfields.- The powers by this Act shall extend to the application of the Act to railways, air transport services, mines and oilfields.
Display by notice of abstracts of the Act.
25. Display by notice of abstracts of the Act.- The person responsible for the payment of wages to persons employed in any establishment shall display by notice of abstracts of the Act.
25A.
Payment of undisbursed wages in cases of death of employed person.

=== CHUNK 2 END ===

=== CHUNK 3 START ===

Title: Chapter XXVI of the Code of Criminal Procedure, 1973 (2 of 1974).]

----- 1. Ins. by Act 53 of 1964, s. 15 (w.e.f. 1-2-1965).

Keywords: prescribe, person, wages, employed, made, amounts, payable, paid

Semantic Category: Legal Act

3*[25A. Payment of undisbursed wages in cases of death of employed person.- (1) Subject to the other provisions of this section, where, in accordance with the provisions of sub-section (1), all amounts payable to an employed person by his employer are paid to the surviving dependants of such person, the employer shall be deemed to have exercised his power under this section.

26. Rule-making power.- (1) The State Government may make rules to regulate the procedure to be followed

(2) The State Government may, 6***, by notification in the Official Gazette, make rules for the purpose

(3) In particular and without prejudice to the generality of the foregoing power, rules made under sub-s

(b) require the display in a conspicuous place on premises where employment is carried on of notices spe

(c) provide for the regular inspection of the weights, measures and weighing machines used by employers

21 (d) prescribe the manner of giving notice of the days on which wages will be paid;

(e) prescribe the authority competent to approve under sub- section (1) of section 8 acts and omissions

----- 1. Subs. by the A. O. 1937, for s.

2. Subs. by the A. O. 1950, for "Federal railways (within the meaning of the Government of India Act, 1935)

4. Subs. by Act 38 of 1982, s. 12 (w.e.f. 15-10-1982).

5. Ins by s. 13, *ibid.* (w.e.f. 1-3-1994).

6. The Words "subject to the control of the Governor-General in Council" omitted by the A. O. 1937.

7. Subs by Act 53 of 1964, s, 22, for "and prescribe the form thereof" (w.e.f. 1-2-1965).

108H (f) prescribe the procedure for the imposition of fines under section 8 and for the making of the d

(g) prescribe the conditions subject to which deductions may be made under the proviso to sub-section (2)

(h) prescribe the authority competent to approve the purposes on which the proceeds of fines shall be expended;

(i) prescribe the extent to which advances may be made and the instalments by which they may be recovered

1*[(ia) prescribe the extent to which loans may be granted and the rate of interest payable thereon with

(ib) prescribe the powers of Inspectors for the purposes of this Act;] (i) regulate the scales of costs

(k) prescribe the amount of court-fees payable in respect of any proceedings under this Act. 2***;

(l) prescribe the abstracts to be contained in the notices required by section 25: 1* 3*xxx 3*[(la) pres

(c) prescribe the abstracts to be contained in the notices required by section 25, 1-5 xxx 5 (1a) pres

=== **CHUNK 3 END** ===

=== CHUNK 4 START ===

Title: Chapter XXVI of the Code of Criminal Procedure, 1973 (2 of 1974).]

----- 1. Ins. by Act 53 of 1964, s. 15 (w.e.f. 1-2-1965).

Keywords: rule, made, session, deposited, clause, ibid, authority, amounts

Semantic Category: Legal Act

(1b) specify the authority with whom amounts required to be deposited under clause (b) of sub-section (1)
(5) All rules made under this section shall be subject to the condition of previous publication, and the
1*[(6) Every rule made by the Central Government under this section shall be laid, as soon as may be aft
2. The word "and" omitted by s. 22, ibid. (w.e.f. 1-2-1965).
3. Omitted by Act 38 of 1982, s. 14 (w.e.f. 15-10-1982).
4. Ins. by s. 14, ibid. (w.e.f. 15-10-1982).
5. Subs. by s. 14, ibid. (w.e.f. 15-10-1982).
108I any modification in the rule, or both Houses agree that the rule should not be made, the rule shall

=== *CHUNK 4 END* ===